

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF UDIMOV v. RUSSIA

(Applications nos. 28665/17 and 45680/17)

JUDGMENT

STRASBOURG

15 December 2022

This judgment is final but it may be subject to editorial revision.



In the case of Udimov v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 24 November 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The details of the applications are set out in the appended table.

4. The applicant complained of the unlawful detention (deprivation of liberty). He also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

6. The applicant complained that his detention on 13 November 2015 was unlawful (see appended table). He relied on Article 5 § 1 of the Convention.

7. The Court reiterates that that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof. It is in the first place for the national authorities, notably the courts, to interpret and apply domestic law. However, since under Article 5 § 1 failure to comply with domestic law entails a breach of the Convention, it follows that the Court can and should exercise a certain

power to review whether this law has been complied with (see, among numerous other authorities, *Benham v. the United Kingdom*, 10 June 1996, §§ 40-41 *in fine*, Reports of Judgments and Decisions 1996 III).

8. In the earlier cases against Russia, the Court has consistently held that (1) detention of an administrative suspect beyond the three-hour statutory period (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), or (2) "escorting" to the police station and ensuing detention of an administrative suspect in order to prepare an administrative offence record in the absence of any exceptional circumstances or necessity justifying the arrest and detention as required by the national legislation (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019 and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019) have been contrary to domestic law requirements and the "lawfulness" guarantee of Article 5 of the Convention.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the applicant's detention at the police station after the preparation of the administrative offence record was not justified and was in contravention of the relevant provisions of the Russian law.

10. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicant submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences, *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, 26 April 2016, concerning disproportionate measures taken by the authorities against participants of solo manifestations, *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies).

12. In view of the above findings, the Court considers that there is no need to deal separately with the applicant's remaining complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses.

IV. REMAINING COMPLAINTS

13. The applicant also raised other complaints under various Articles of the Convention.

14. The Court has examined the complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law, as well as to the other complaints lodged by the applicant and examined by the Court, the Court considers it reasonable to award the sum indicated in the appended table.

17. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *finds* that it is not necessary to examine separately complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses, and *declares* the remainder of the applications inadmissible;

3. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention on account of the applicant's unlawful detention on 13 November 2015 (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see the appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicant, within three months, the amount indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 15 December 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

Application no. Date of introduction	Applicant's name	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
28665/17 23/03/2017 and 45680/17 12/05/2017	**Mikhail Leontyevich UDIMOV** 1955	Zboroshenko Nikolay Sergeyevich Moscow	13/11/2015	13/11/2015	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). the complaint was raised on appeal in the administrative proceedings which ended on 14/11/2016	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – 1) demonstration in Moscow on 07/03/2016 to support N. Savchenko; Article 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court 28/09/2016; 2) the applicant's arrests followed by conviction of administrative offence due to his participation in the manifestation for fair elections to Mosgorduma held on 03/08/2019, Trubnaya square, Moscow, convicted under Art. 20.2 § 5 of CAO and sentenced to an administrative fine of RUB 20,000, final decision taken by the Moscow City Court on 16/09/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - proceedings concerning the solo demonstrations held on 11/05/2015, 13/11/2015, 26/03/2017, and the manifestations held on 03/08/2019 (*Karelin v. Russia*, no. 926/08, 20 September 2016);	1,000

Application no. Date of introduction	Applicant's name	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
						Art. 10 (1) - disproportionate measures against solo demonstrators - Solo demonstration in support of Nadezhda Savchenko in Moscow on 11/05/2015, charges under article 20.2 § 8 of CAO, fine of RUB 150,000 (final domestic decision - Moscow City Court, 14/11/2016); Solo demonstration in support of Petr Pavlenskiy in Moscow on 13/11/2015, charges under Article 20.2 § 5 of CAO, administrative fine of RUB 10,000 (final domestic decision - Moscow City Court, 14/11/2016); Anti-corruption solo demonstration in Moscow on 26/03/2017, charges under article 20.2 § 5 of CAO, administrative fine of RUB 20,000 (final domestic decision - Moscow City Court, 30/03/2018). In relation to all 3 demonstrations – rotation, event classified as assembly post facto.	

[1] Plus any tax that may be chargeable to the applicant.